

BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR EXAMINERS

STATE OF COLORADO

Case No. 2017-7156

ORDER OF SUMMARY SUSPENSION

TO: Christie Noel Nacy

The State Board of Licensed Professional Counselor Examiners ("the Board"), having reviewed all available information as to the matters referenced below, HEREBY FINDS AS FOLLOWS:

1. Christie Noel Nacy ("Respondent") has been licensed as a professional counselor ("LPC") in the State of Colorado since July 1, 2017. Respondent's license number is LPC 13871.
2. The Board has jurisdiction over Respondent and the subject matter herein pursuant to the Mental Health Practice Act, § 12-245-101 *et seq.*, C.R.S. ("MHPA").
3. On June 5, 2018, Respondent entered into a Stipulation and Final Agency Order ("2018 Stipulation") with the Board admitting to violations of § 12-43-222(1)(e) and § 12-43-222(1)(f)(I), C.R.S.¹ The 2018 Stipulation placed Respondent's license on probation for a period of five (5) years and required Respondent to successfully complete a five (5) year contract with Peer Assistance Services ("PAS").
4. On or about August 6, 2019, PAS notified the Board that Respondent was asked to sign a cease practice agreement with PAS.
5. On or about August 23, 2019, PAS notified the Board that Respondent missed two consecutive calls to the urinalysis line.
6. On or about August 26, 2019, PAS notified the Board that Respondent missed three urinalysis line calls and one urinalysis test.
7. Respondent's missed calls and missed test constitute violations of Respondent's contract with PAS and the 2018 Stipulation.
8. On September 27, 2019, the Board reviewed information regarding Case No. 2017-7156 and Respondent's failure to comply with the 2018 Stipulation and the MHPA.

¹ Due to recodification, the citations for these violations are §§ 12-245-224(1)(e) and 12-245-224(1)(f)(I) C.R.S. as of October 1, 2019.

9. Upon full investigation of the documents and information presented in regard to Case No. 2017-7156, the Board finds as follows: Respondent has failed to comply with a Board order in violation of §12-43-222(1)(b), C.R.S.²

10. Upon full investigation of the documents and information presented, the Board finds objective and reasonable grounds to believe and finds that Respondent is not safe to practice as a LPC with reasonable skill and safety to patients and the public health, safety, and welfare imperatively requires emergency action. As a result, Respondent's license to practice as a LPC in the State of Colorado must be summarily suspended.

11. The Board hereby summarily suspends Respondent's license to practice as an LPC in the State of Colorado pursuant to §§12-245-226(2)(c)(II)(A), 24-4-104(4) and 24-4-105(12), C.R.S.

12. Respondent cannot engage in the practice of professional counseling in the State of Colorado or hold herself out as able to practice professional counseling in the State of Colorado while her license is suspended.

13. Any violation of this Order constitutes a violation of a lawful Board Order and may be grounds for further proceedings pursuant to § 12-245-226, C.R.S. The pendency of any disciplinary action shall not affect the obligation of Respondent to comply with this Order.

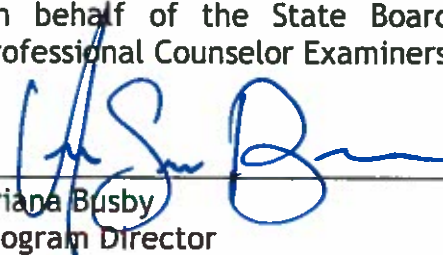
14. This Order does not resolve any other cases, complaints, or matters, known or unknown to the Board or Respondent, as of the effective date of this Order.

15. This Order shall be a public record in the custody of the Board.

THEREFORE, pursuant to the above, IT IS HEREBY ORDERED that the certification of Christie Noel Nacy to practice as an LPC in the State of Colorado is summarily suspended pursuant to §§ 12-245-226(2)(c)(II)(A), 24-4-104(4), and 24-4-105(12), C.R.S.

DATED and SIGNED this 9th day of October, 2019.

On behalf of the State Board of Licensed
Professional Counselor Examiners,



Ariana Busby
Program Director

² Due to recodification, the citation for this violation is §§ 12-245-224(1)(b) C.R.S. as of October 1, 2019.